

The Tripura Agricultural Produce Markets Act, 1980

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State of Tripura - Act

The Tripura Agricultural Produce Markets Act, 1980

TRIPURA

India

The Tripura Agricultural Produce Markets Act, 1980

Act 15 of 1983

Published on 15 February 1983

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The Tripura Agricultural Produce Markets Act, 1980

(Tripura Act

No. 15 of 1983

)

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An Act to provide for the better regulation of buying and selling of agricultural produce and the establishment of markets for agricultural produce in the State of Tripura and for matters connected therewith

Be it enacted by the Legislative Assembly of Tripura in the Thirty-First Year of the Republic of India as follows:

Chapter I

Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called the Tripura Agricultural Produce Markets Act, 1980.

(2)

It extends to the whole of the State of Tripura.

(3)

It shall come into force on such date as the State Government may, by notification in the official Gazette, appoint.

2.

Definitions.

(1)

In this Act, unless the context otherwise requires,-

(a)

"agricultural produce" means such produce (whether processed or not) of agriculture, horticulture, forest, animal husbandry and pisciculture, as are specified in the Schedule;

(b)

"agriculturist" means a person who ordinarily by his own labour or by the labour of any member of his family or who by the labour of his tenant or by servant or hired labour or otherwise is engaged in the production or growth of agricultural produce which has not been processed, but does not include a trader, commission agent, processor or broker, in or in relation to, agricultural produce even though such trader, commission agent, processor or broker is also engaged in the production or growth of agricultural produce;

Explanation. - For the purpose of this clause a person merely processing agricultural produce shall not be deemed to be engaged in the production or growth of agricultural produce and an agriculturist shall not cease to be so only because he processes or causes to be processed his own agricultural produce;

(bb)

["Board" means the Tripura Agricultural Produce Market Board established under Section 38]

[Clause (bb) has been inserted vide Tripura Act No. 3 of 1984, published in the Tripura Gazette, Extraordinary, Part III, No. 166, dated 30-8-1984.]

;

(c)

"Bye-laws" means bye-laws made under Section 56;

(cc)

["Chairman" means the Chairman of the Board appointed under sub-section (5) of Section 38-A]

[Clause (cc) has been inserted vide Tripura Act No. 3 of 1984, published in the Tripura Gazette, Extraordinary, Part III, No. 166, dated 30-8-1984.]

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(d)

"commission agent" means a person who, by himself or through his servant, buys and sells agricultural produce for any other person, keeps it in his custody and controls it during the process of its sale and purchase, and collects-payment therefor from the buyer and pays it to the seller, and receives by way of remuneration, a commission or percentage upon the amount involved in each transaction:

(e)

"Director" means the Director of Agriculture of the Government of Tripura and includes any other Officer appointed by the State Government to discharge all or any of the functions of the Director under this Act;

(ee)

["General Manager" means the General Manager of the Board appointed under sub-section (5) of Section 38-A]

[Clause (ee) has been inserted vide Tripura Act No. 3 of 1984, published in the Tripura Gazette, Extraordinary, Part III, No. 166, dated 30-8-1984.]

;

(f)

"local authority" means in relation to an area within the local limits of,-

(i)
a Municipality, that Municipality;

(ii)
a notified area authority, that authority;

(iii)
a Gaon Sabha, that Sabha;

(g)
"market" means any market established under Section 5 of this Act;

(h)
"market area" means an area declared to be a market area under Section 4;

(i)
"market committee" means a committee constituted for a market area under Section 6 and includes a sub-committee constituted under Section 24;

(j)
"notification" means a notification published in the official Gazette;

(k)
"official Gazette" means the Tripura Gazette;

(l)
"prescribed" means prescribed by rules made under this Act;

(m)
"processor" means a person who processes any agricultural produce on payment of charge;

(n)
"retail sale" in relation to any agricultural produce means the sale of that produce, not exceeding such quantity as the market committee may by bye-laws determine to be a retail sale;

(o)
"Schedule" means the Schedule to this Act;

(p)
"Secretary" means the Secretary of a market committee and includes an Assistant Secretary;

(q)
"Surveyor" means a person who on arrival of a consignment of agricultural produce for sale in any market area or market, surveys it for ascertaining the quality, refraction, alteration and other like factors;

(r)
"trader" means a person who buys and sells agricultural produce as a principal or as a duly authorised agent for one or more persons or group of persons.

(2)
If any question arises as to whether a person is or is not an agriculturist for the purposes of this Act, the matter shall be referred to the Director who shall decide the same.

3.
Notification of intention of regulating marketing of agricultural produce in specified area.

(1)
The State Government may, by notification in the Official Gazette and in local newspapers, preferably in regional language, declare its intention of regulating the purchase and sale of such agricultural produce and in such area as may be specified in the notification in accordance with the provisions of this Act.

(2)
The notification shall state that any objections for suggestions which may be received by the State Government within a period, not being less than sixty days, to be specified in the notification, shall be considered by the State Government.

4.
Declaration of regulation of marketing of specified agricultural produce in market area.

(1)
On the expiry of the period specified in the notification issued under Section 3 and after considering the objections and

suggestions as may be received before such expiry, the State Government may, by notification, declare the area specified in that notification or portion thereof, to be a market area for the purposes of this Act in respect of all or any agricultural produce specified in that notification.

(2)

The State Government may in the manner specified in Section 3, at any time-

(a)

exclude from a market area, any area comprised therein; or

(b)

include in the market area, any new area as may be specified in such notification.

(3)

On a declaration being made under sub-section (1), no local authority shall, notwithstanding anything contained in any other law for the time being in force, establish or authorise or allow to be established, or continue or authorise the continuation of any place in the market area for the marketing of agricultural produce specified in the declaration or levy any fees on such agricultural produce sold in the market area.

Chapter II

Establishment of Markets and Constitution of Market Committees

5.

Establishment of markets.

(1)

For every market area, there shall be established a principal market, and there may also be established one or more subsidiary markets, for the marketing of agricultural produce.

(2)

The Director shall, as soon as possible after the declaration is made under sub-section (1) of Section 4, by notification, establish any place (including any structure, enclosure, open place or locality) in any market area to be the principal market for the marketing of the agricultural produce specified in such notification and may, in the same manner establish in any other like places in the area subsidiary markets for the marketing of such agricultural produce.

6.

Constitution of market committees.

(1)

There shall be constituted by the State Government, for every market area, a market committee; and different market committees may be constituted for regulating the marketing of different kinds of agricultural produce marketed in the same market area or in any part thereof.

(2)

The provisions of the Tripura Markets Act, 1979 shall not apply to a market in relation to the specified agricultural produce only.

(3)

Every market committee shall exercise such powers and discharge such functions as may be vested in it by or under this Act.

7.

Composition of market committees.

(1)

Subject to the provision of sub-section (2) every market committee shall consist of the following 12 members namely:

(a)

Six members to be elected by the agriculturist residing in the market area and holding agricultural land as ryot or under-ryot in the State of Tripura.

(b)

One member each to represent-

(i)

the traders holding licences to operate as such in the market area; and

(ii)

the Co-operative Societies operating in that market area; elected by the traders, or as the case may be, the Societies, in

the manner as may be prescribed:

Provided that where there is no co-operative society in the market area both the members shall be elected by the traders only.

(c)

Two members to be elected by the members of the local authority within the local limits of whose jurisdiction the principal market in relation to that market committee is situated.

(d)

One member each to represent the departments of the State Government dealing with Agricultural and Animal Husbandry, to be appointed by the State Government.

(2)

When a market committee is constituted for the first time, all the members thereof including the President, shall be nominated by the State Government.

(3)

Subject to the provisions of sub-section (2) every market committee shall elect one of its elected members to be its President.

8.

Incorporation of market committee.

- Every market committee shall be a body corporate by such name as the State Government may, by notification, specify and shall have perpetual succession and a common seal and may, in its corporate name, sue and be sued and shall, subject to such restrictions as are imposed by or under this Act, be competent to contract and to acquire, hold and dispose of property, both movable and immovable, and to do all other things necessary for the purposes for which it is constituted.

9.

Election and term of office of members.

(1)

Except as otherwise provided in this Act and subject to the provisions of sub-section (2) of Section 7, the members of a market committee shall be elected by the individual, authorities or bodies referred to in sub-section (1) of Section 7.

(2)

The manner of election, preparation and maintenance of the list of voters, qualifications of member, disqualifications for being chosen as, and for being chosen as, and for . being, a member, the right of vote, the payment of deposit and its forfeiture, determination of election disputes, publication of the names of members elected, and all matters ancillary thereto shall be such as may be prescribed.

(3)

If, for any reason, any body of persons, local authority or co-operative society or managing committee thereof, fails to elect members of any market committee, the Director shall give notice in writing requiring such body of persons, local authority or co-operative society or managing committee thereof, to elect members within one month from the date of service of such notice; and on the failure of such body, authority, society or committee to elect members within the specified period, the Director shall nominate the required number of persons who are qualified to be elected under this Act to represent such body of persons, local authority or co-operative society or managing committee thereof.

(4)

Except as otherwise provided under this Act, a member of a market committee (not being a committee constituted for the first time) shall hold office for a period of three years and a member of a market committee constituted for the first time shall hold office for a period of one year:

Provided that the State Government may, by notification extend the term of office of members of any market committee for a period not exceeding one year;

Provided further that a person who is a member of a co-operative society or a local authority shall cease to hold office on his ceasing to be such member, and in the case of a person who is a licensee shall cease to hold office on his ceasing to be the holder of the licence.

(5)

The names of the members of a market committee who have been elected or nominated, shall be published in the official Gazette.

(6)

Upon the publication of the names of all the members of a market committee after election, or nomination, as the case may be, or upon the publication of the names of at least nine members of such committee in the official Gazette, the market committee shall be deemed to be duly constituted.

10.

Creation of election fund.

- The superintendence, direction and control of the preparation of the list of voters for, and conduct of, all election to market committee shall be vested in the Director and, for the purpose of preparing the list of voters and conduct of elections, every market committee shall constitute an election fund consisting of an amount as may be determined by the Director and shall deposit with the Director such amount and before such date as may be directed by him for meeting the expenses for preparing or revising the list of voters of conducting the election.

11.

Commencement of term of office of members.

(1)

The term of office of the members of a market committee shall be deemed to commence on the date of the first meeting of the market committee at which business is transacted.

(2)

The first meeting of the market committee, to be called by the President, shall be held on such date as may be fixed by the Director or any officer authorised by him in that behalf, being a date not later than thirty days from the date on which the committee is deemed, under sub-section (6) of Section 9 to be duly constituted

(3)

Where the first meeting cannot, for any reason, be held within the said period of thirty days, the Director shall report the fact to the State Government stating the reasons for the failure to hold the meeting and shall act according to the direction of the State Government issued in that behalf.

(4)

The term of office of the outgoing members shall be deemed to extend to and expire with the date immediately the date of such first meeting.

12.

Resignation of members and nomination in certain circumstances.

(1)

A member of a market committee may resign his office in writing addressed to the President and the President may resign his office of membership in writing addressed to the Director and the resignation shall take effect from the date on which it is accepted by the President, or as the case may be, the Director.

(2)

If at any time it appears to the State Government that any market committee, by reason of the resignation of all or a majority of the members thereof, is unable to discharge the functions conferred or imposed upon it by or under this Act, it may, by notification, nominate persons to fill the vacancies of the members who have resigned ; and the persons so nominated shall hold office for the remainder of the term of the members in whose place they are nominated or until the vacancies are duly filled by election or nomination, as the case may be.

13.

Removal of member of market committee.

- The State Government may, on the recommendation of the market committee supported by not less than eight members of the committee present and voting at a meeting remove any member if he has been guilty of misconduct or of any disgraceful conduct, or has become incapable of performing his duties as a member or is adjudged an insolvent: Provided that no such member shall be removed from his office unless he has been given a reasonable opportunity of being heard by the State Government.

14.

Casual vacancies.

- Subject to the provisions of sub-section (3) of Section 9 and sub-section (2) of Section 12 in the event of vacancies occurring on account of death, resignation or removal of a member, whether elected or nominated, before the expiry of his term of office, or otherwise, the President of the market committee shall forthwith communicate the occurrence of

such vacancy to the Director and the vacancy shall be filled as soon as convenient may be, by election, or as the case may be, nomination of a person, who shall hold office for the remainder of the term of office of the member in whose place he is elected or nominated:

Provided that if the vacancy occurs at any time within three months immediately proceeding the date on which the term of office of the member is due to expire the vacancy shall not, unless the State Government otherwise directs, be filled.

15.

Terms of office of the President.

- The president shall unless removed earlier, hold office for such period as may be prescribed and shall not withstanding the expiry of his term of office, continue to hold office until his successor enter upon his office.

15A.

[Powers and duties of the President of a market committee.

[Section 15A has been inserted vide Tripura Act No. 3 of 1984, published in the Tripura Gazette, Extraordinary Part III, No. 166, dated 30.8.1984.]

- The President of a market committee shall in addition to presiding over the meetings of the committee, exercise and discharge such powers and duties of the committee as may be delegated to him by the committee and such other powers and duties as may be prescribed.]

16.

Procedure of election of President.

(1)

The President shall be elected in the first meeting of the market committee.

(2)

Such meeting shall be presided over by the Director or any person authorised by him in this behalf.

(3)

The Director or such person shall, when presiding over the meeting, have the same powers as the President has while presiding over a meeting of the market committee but shall not have the right to vote.

(4)

If, in the election of the President, there is an equality of votes, the result of the election shall be decided by lots to be drawn in the presence of the person presiding over the meeting and in such manner as he may determine.

(5)

In the event of a dispute arising as to the validity of the election of the President, the Director, if he is the presiding officer, shall decide the dispute himself, and, in any other case, the person presiding shall refer the dispute to the Director for decision and the decision of the Director, subject to an appeal to the State Government, shall be final, and no suit or other proceeding shall lie in any court in respect of any such decision.

17.

Resignation of President.

- The President of the Market Committee may resign his office in writing addressed to the Director; and the resignation shall take effect from the date on which it is accepted by the Director.

18.

Consequences of absence of the President without leave.

- Subject to the rules made by the State Government in this behalf, a President of the market committee who absents himself from three consecutive meetings of the market committee without leave of the Director shall cease, on and from the date on which the third such meeting is held, to be the President.

19.

Vacancies in office of President.

(1)

In the event of a vacancy in the office of the President by reason of death, resignation or otherwise, the vacancy shall be filled as soon as possible,-

(a)

by nomination, in the case of a market committee constituted for the first time; and

(b)

in any other case, in the manner provided in sub-section (3) of Section 7.

(2)

Every President nominated or elected, as the case may be, under this section, to fill a casual vacancy shall hold office for such period as the president in whose place he is nominated or, as the case may be, elected, would have held such office if the vacancy had not occurred.

20.

Refusal to hand over charge to new President.

(1)

On the nomination or election of the President, the outgoing President shall forthwith hand over charge of his office to the successor-in-office.

(2)

If the outgoing President fails or refuses to hand over charges of his office as required under sub-section (1), the Director or any person authorised by the Director in this behalf may, by order in writing, direct such President forthwith to hand over charge of his office to the successor-in-office together with all records, fund and property of the market committee, if any, in his possession as such President.

(3)

If the outgoing President to whom a direction has been issued under sub-section (2) does not comply with such direction, the Director or any other person authorised by him in this behalf may apply to the Executive Magistrate, within the local limits of whose jurisdiction the market committee is functioning, for seizing and taking possession of the records, funds and property of the market committee in the possession of such President and handing over possession thereof to the successor-in-office.

(4)

On receipt of an application under sub-section (3) the Executive Magistrate may authorise any police officer, not below that rank of a Sub-Inspector to enter and search any place where the records, fund and property are kept or are likely to be kept and to seize them and to handover possession thereof to the person specified in such application.

(5)

The provision of the Code of Criminal Procedure, 1973 shall apply to every search and seizure made under this Act.

21.

Meeting etc. of market committee.

- The quorum for a meeting of the market committee and the procedure to be followed thereat shall be regulated in accordance with the bye-laws made for the purpose by the market committee.

22.

Members to act during vacancy; acts of market committee, etc. not to be invalidated by informalities.

- A market committee shall have power to act notwithstanding any vacancy in the membership, or any defect in the constitution, thereof; and the proceedings of a market committee shall be valid notwithstanding that some person, who was not entitled to be a member, had sat, voted or otherwise taken part in the proceedings of any such committee.

Chapter III

Market Committees-Powers and Duties

23.

Powers and duties of market committees.

(1)

Subject to the provision of this Act, it shall be the duty of a market committee-

(i)

to implement the provisions of this Act and of the rules and bye laws made thereunder for the market area;

(ii)

to provide such facilities for marketing or agricultural produce therein as the State Government may, from time to time, direct;

(iii)

to do such other acts as may be required in relation to the superintendence, direction and control of markets, or for regulating, marketing or agricultural produce in any place, in the market area and for purposes connected with the matters aforesaid, and for that purpose, may exercise such powers and perform such duties and discharge such functions as may be provided by or under this Act.

(2)

Without prejudice to the generality of the foregoing provisions, a market committee may-

(a)

grant, renew, refuse, suspend or cancel licences;

(b)

provide for settling disputes arising out of any kind of transactions connected with the marketing of agricultural produces and all matters ancillary thereto;

(c)

prosecute persons for violating the provisions of this Act and all the rules and bye-laws made thereunder;

(d)

maintain and manage the market, including the regulations of conditions for use of the market;

(e)

regulate the marketing of agricultural produce in the market area or the market, and the weighment or delivery of, or payment for, such agricultural produce;

(f)

arrange for collection-

(i)

of such agricultural produce in the market area in which all trades therein are to be carried on exclusively by the Government by or under any law for the time being in force for that purpose, or

(ii)

of such other agricultural produce in the market area, as the State Government may, from time to time, notify in the Official Gazette (hereinafter referred to as the notified produce);

(g)

acquire, hold and dispose of any movable or immovable property (including any equipment necessary for the purpose of efficiently carrying out its duties);

(h)

collect or maintain, disseminate and supply information in respect of production, sale, storage, processing, prices and movement of agricultural produce (including information relating to crops-statistics and marketing intelligence as may be required by the Director of the State Government;

(i)

take of possible steps to prevent adulteration and to promote grading and standardisation of such agricultural produces as may be prescribed;

(j)

enforce the provisions of this Act and of the rules and bye-laws made, and conditions of the licences granted under this Act;

(k)

perform such other duties as may be prescribed.

24.

Constitution of sub-committee, delegation of powers.

- A market committee may constitute one or more sub-committees consisting of one or more of its members and, subject to such restrictions and conditions as may be prescribed, delegated to such sub-committees such of its powers or duties as it may think fit.

25.

Power of the market committee to open collection centre for marketing of specified produce; provision for receipt and payment by purchaser.

(1)

A market committee duly authorised by the State Government for the purpose may, by an order published for the information of the public in such manner as it deems fit, open collection centres for collecting thereat the produce specified in such order (hereinafter referred to as the specified produce).

(2)

Where any person wishes to sell any specified produce in a market area, he shall tender all such produce only at the

collection centre established for the purpose under sub-section (1):

Provided that, any such specified produce may be tendered through a commission agent or any agency specified by the State Government in this behalf.

(3)

The market committee shall, on the sales of such produce, get it weighed, measured or, as the case may be, counted forthwith and arrange for issuing a receipt therefor to the person who has tendered the produce at the collection centre for sale or, as the case may be, to the commission agent or agency and shall also arrange to give a copy of the receipt to the purchaser:

Provided that the market committee may authorise any corporate body registered under the Tripura Co-operative Societies Act, 1974 and operating in the collection centre in specified produce for the purpose of discharging the functions of the market committee under this sub-section on such terms and conditions, not being inconsistent with the provisions of this Act or the rules or the bye-laws made thereunder, as may be agreed upon.

(4)

Such receipt shall contain the following particulars that is to say,-

(i)

the name of the collection centre;

(ii)

the name of the tenderer;

(iii)

the name of the purchaser;

(iv)

the name of the agent if any;

(v)

the name of the specified produce, the weight, measure or number thereof and the fees paid for the weighing measuring or counting such produce;

(vi)

grade of specified produce, if any, and the rate;

(vii)

the amount to be paid to the market committee by the purchaser;

(viii)

the amount to be paid by the tenderer to the commission agent by way of his commission if any, and such other market charges, as are duly authorised by the market committee.

(ix)

the amount to be actually paid to the tenderer after deducting the amount, if any, falling under Clause (vii) or Clause (viii);

(x)

the total amount to be paid by the purchaser in respect of the specified produce purchased by him.

(5)

The dues payable to a market committee under Clause (vii) of sub-section (4) shall consist of fees to be levied and collected from a purchaser by or under this Act.

(6)

The purchaser shall, on receiving a copy of the receipt, pay forthwith the total amount to be paid by him as recorded in the receipt, to-

(a)

the market committee, an amount equal to the total of the amount referred to in Clause (vii) and Clause (viii) of sub-section (4);

(b)

the tenderer, an amount equal to the amount referred to in Clause (ix) of sub-section (4).

(7)

The market committee, on receipt of money, shall arrange to pay from the amount received by it, to the commission agent, if any, the amount recorded against such agent in the receipt and credit the balance due to it to the market fund.

26.

Power of market committee to levy fees.

- It shall be competent for a market committee to levy and collect such fees (hereinafter referred to as the market fees), not being in the excess of, or less than, an amount determined by the State Government by notification, from every purchaser of agricultural produce sold in a market area in such manner and at such rate as may be prescribed:

Provided that when any agricultural produce brought into any market area for the purpose of processing only, or for export, is not processed or exported therefrom within thirty days, from the date of its arrival therein, it shall, until the contrary is proved, be presumed to have been brought into the market area for buying and selling, and shall be subject to the levy of fees under this section, as if it had been brought and sold therein;

Provided further that no such fees shall be levied and collected in the same market area in relation to any agricultural produce in respect of which fees under this section have already been levied and collected therein.

27.

Power to borrow and lend.

(1)

A market committee may, with the previous sanction of the State Government, raise money required for carrying out the purposes for which it is established on the security of any property vested in it and of any fees leviable by it under this Act.

(2)

A market committee may, for the purpose of meeting the expenditure on lands, building and equipment, required for establishing the market, obtain loan from the State Government on such terms and conditions as that Government may determine.

(3)

A market committee may with the previous approval of the State Government, obtain loans from other market committees or any financial institution or give loans to other market committees on such conditions and subject to such rules, as may be made.

28.

Execution of contracts.

(1)

Every contract entered into by a market committee shall be in writing and shall be executed on behalf of the committee by the President and the Secretary of the committee.

(2)

No contract, other than a contract executed as provided in sub-section (1) shall be binding on the market committee.

Chapter IV

Officers and Servants of Market Committee

29.

Power of market committee to employ staff.

(1)

Every market committee shall have as its Secretary a person appointed by the State Government from amongst the nominated members of the committee.

(2)

A market committee may, with the previous approval of the State Government, employ such number of other officers and servants as may be necessary for the management of the market and the salary and conditions of service of such officers and servants shall be such as may be determined by the committee by bye-laws made in this behalf.

(3)

The Government may, on the request of a market committee and on such conditions as may be prescribed depute a servant of the Government to the service of the market committee for the purpose of assisting that committee to manage its affairs.

29A.

[Powers and duties of the Secretary of a market committee.

[Section 29A has been inserted vide Tripura Act No. 3 of 1984 published in the Tripura Gazette, Extraordinary, Part III, No. 166 date 30-8-1984.]

- The Secretary shall exercise and discharge such powers and duties as may be delegated to him by the President, and such other powers and duties as may be prescribed.]

Chapter V

Marketing of Agricultural Produce

30.

Regulation of marketing of agricultural produce.

(1)

Subject to the provisions of this section and of the rules providing for regulating the marketing of agricultural produce in any place in the market area, no person shall on and after the date on which an area is declared under sub-section (1) of Section 4, to be a market area, without, or otherwise than in conformity with the terms and conditions of a licence granted by-

(a)

the Director when a market committee has not been constituted or has not started functioning; or

(b)

in any other case, by the market committee-

(i)

use any place in the market area for the marketing of the agricultural produce specified in the said declaration; or

(ii)

operate in the market area or in any market therein as a trader, commission agent, processor, weighman, measurer, surveyor, warehouseman, or in any other capacity in relation to the marketing of such agricultural produce.

(2)

Nothing in sub-section (1), shall apply to the retail sale by an agriculturist of his own produce, or to sell by a person, not being a trader or agriculturist, where such person himself sells to another who buys for his personal consumption or the consumption of any member of his family.

31.

Grant of licences.

(1)

Subject to the rules made in this behalf, a market committee may, after making such inquiries as it deems fit, grant or renew a licence for the use of any place in the market area for the marketing of agricultural produce or for operating therein as trader, commission agent, surveyor processor, weighman, measurer, warehouseman or in any other capacity in relation to marketing of agricultural produce or may after recording its reason in writing therefor, refuse to grant or renew any such licence:

Provided that the Director may, where a market committee has not been constituted or has not started functioning, subject to any rules that may be made in this behalf, grant a licence for the marketing of agricultural produce or for operating in any market area as a trader, commission agent, processor, weighman, measurer, surveyor, warehouseman or in any other capacity.

(2)

A licence granted under sub-section (1)-

(a)

shall be in such form, valid for such period and subject to such terms, conditions restrictions and limitations as may be prescribed and such restrictions may include a provision prohibiting commission agents from acting in any transaction (except between a trader and trader) in respect of such agricultural produce as may be prescribed; and

(b)

may also specify-

(i)

the manner in which and the place at which auction of agricultural produce shall be conducted and bids at such auction shall be accepted;

(ii)

place at which weighment and delivery of agricultural produce shall be made in any market or market area and on payment of such fees as may be prescribed.

32.

Power of cancellation and suspension of licence.

(1)

Subject to the provision of sub-section (3), a market committee may, for reasons to be recorded in writing, suspend or cancel a licence granted or renewed under this Chapter-

(a)

if the licence had been obtained through wilful misrepresentation or fraud;

(b)

if the holder of the licence or any servant or any one acting on his behalf with his express or implied permission commits a breach of any of the terms or conditions of the licence; or

(c)

if the holder of the licence in combination with other holders of licence commits any act or abstains from carrying out his normal business in the market with intention of wilfully obstructing suspending or stopping the marketing of agricultural produce in the market area; or

(d)

if the holder of the licence has been adjudged an insolvent and has not obtained his discharge; or

(e)

if the holder of the licence is convicted of any offence under this Act.

(2)

Notwithstanding anything contained in sub-section (1) but subject to the provisions of sub-section (3), the Director may, when the market committee has not been constituted or has not started functioning for reasons to be recorded in writing, by order, suspend or cancel any licence granted or renewed under this Chapter.

(3)

No licence shall be suspended or cancelled under this section unless the holder thereof has been given a reasonable opportunity of showing cause against the proposed action.

33.

Appeal.

(1)

Any person aggrieved by an order of the Director or the market committee refusing to grant or renew a licence or cancelling or suspending any licence, may appeal to the State Government within thirty days from the date on which such order is communicated to him and in such manner as may be prescribed.

(2)

The State Government shall, on such appeal, make such order as it may deem just and proper;

Provided that, before dismissing an appeal, the State Government shall give the appellant a reasonable opportunity of being heard, and record in writing the reasons for, such dismissal.

34.

Provision for settlement of disputes.

(1)

For the purpose of settling dispute between buyers and sellers of agricultural produce or their agents including any dispute regarding quality or weight or payment, or any matter in relation to the regulation of marketing of agricultural produce in the market area, the market committee constituted for that market area may appoint arbitrators or constitute from amongst its members a sub-committee.

(2)

The method of appointment of arbitrators, the constitution and function of the sub-committees and the fees, if any, that may be paid by parties for the settlement of disputes shall be such as may be prescribed.

Any party, aggrieved by the decision of the arbitrator or the sub-committee, may prefer an appeal from such decision to the State Government in such manner and within such time as may be prescribed.

Chapter VI

Market Fund

35.

Market fund, its custody and investment.

(1)

All fees and other moneys received by a market committee under this Act (except the amount of such fees credited to the election fund under Section (10), all sums realised by way of penalty (otherwise than by way of fine in any criminal case), all loans raised by the Committee, and all grants loans, or contributions made by the State Government to the Committee shall form part of a fund to be called the market fund.

(2)

The amount to the credit of a market fund shall be kept or invested in such manner as may be prescribed.

36.

Purposes for which market fund may be expended.

- The amount standing to the credit of the market fund may be expended for all or any of the following purposes, namely:

(a)

the acquisition of site or sites for the market;

(b)

maintenance, development and improvement of market;

(c)

construction of, and repairs to building necessary for the purpose of such market and for the health, convenience and safety of persons using it;

(d)

the provision and maintenance of standard weight and measures;

(e)

pay, pension and leave, allowances, gratuities, compensations for injuries or death resulting from accidents, compassionate allowances and contributions towards leave, pension or provident fund of the officers and servants, employed by the market committee;

(f)

the payment of interest on loan, if any, raised by the market committee and the provision of sinking fund in respect of such loan;

(g)

the collection and dissemination of information regarding matters relating to crops statistics and marketing in respect of agricultural produce specified in the notification under sub-section (1) of Section 4;

(h)

propaganda in favour of agricultural improvement and orderly marketing;

(i)

payment of travelling and other allowances to the members of the market committee and of its sub-committees, if any, constituted under Section 34;

(j)

expenses of any tribunal constituted under sub-section (4) of Section 52;

(k)

any other function of the market committee specified in this Act or in the rules made thereon:

(l)

for any other purpose, with the previous approval of the State Government.

37.

Manner of auditing accounts, preparing budget, annual report etc.

- The manner in which any payment from the market fund shall be made, its account shall be kept and audited or re-audited (including powers to be exercise by the auditor in this behalf), its annual, revised or supplementary budget estimates of income and expenditure shall be made (including provision for modifying, annulling or rescinding such budgets) and its annual administrative report shall be prepared, shall be such as may be prescribed.

Chapter VII

Trade Allowances Prohibited

38.

Making or recovery of trade allowances prohibited.

- No person shall make, or cause to be made on his behalf or on behalf of any other person, or recover, or cause to be recovered on his behalf or on behalf of any other person, and trade allowances in any market or market area in relation

to any transaction made or proposed to be made in the market area in respect of any agricultural produce.

Explanation. - For the purposes of this section "trade allowance" means anything realised in cash or in kind by the purchaser from the seller in any transaction relating to agricultural produce either by deduction from the price agreed upon or otherwise.

[Chapter VII-A]

[Chapter VII-A (containing Sections 38-A to 38-R) has been inserted vide Tripura Act No. 3 of 1984, published in the Tripura Gazette, Extraordinary, Part III, No. 166, dated 30-8-1984.]

The Board

38A.

Establishment and constitution of the Board.

(1)

For the purpose of co-ordinating and supervising the works of the market committees and for other purposes of this Act, the State Government may, by notification in the Official Gazette, establish a Board, to be called the Tripura Agricultural Produce Market Board.

(2)

The Board shall be a body corporate by the name aforesaid having perpetual succession and a common seal, with power, subject to the provisions of this Act, to acquire, hold and dispose of property, both movable and immovable, and to contract and shall by the said name use and be sued.

(3)

The Board shall consist of members, both officials and non-officials, not less than six or more than ten in number, of whom not more than fifty per cent shall be non-officials.

(4)

The members of the Board shall be appointed by the State Government.

(5)

The State Government shall appoint one member of the Board to be the Chairman and another official member of the Board to be the General Manager.

38B.

Disqualifications.

- No person, who-

(a)

is an employee of the Board, or

(b)

has been declared by a competent court to be of unsound mind, or

(c)

is an undischarged insolvent, or

(d)

has been convicted by a court of law for an offence involving moral turpitude.

Shall be eligible to be appointed as a member of the Board.

38C.

Term of office of the members of the Board.

(1)

The term of office of the members of the Board shall be three years from the date of appointment and other conditions of service of the members shall be such as may be prescribed:

Provided that the State Government may, by notification in the Official Gazette, extend the term for a period not exceeding one year.

(2)

In the event of any vacancy occurring on account of death, resignation, removal or otherwise of a member, such vacancy shall be filled, as soon as may be convenient, by appointment of a person who shall hold office for the remainder of the term of office of the member in whose place he is appointed.

38D.

Resignation by the Chairman or member of the Board.

- A member of the Board may resign his office in writing addressed to the Chairman and the Chairman may resign his office in writing addressed to the State Government and the resignation shall take effect from the date on which it is accepted by the Chairman, or, as the case may be, the State Government.

38E.

Powers and duties of the Chairman.

- The Chairman shall, in addition to presiding over the meetings of the Board, exercise and discharge such powers and duties of the Board as may be delegated to him by the Board and such other powers and duties as may be prescribed.

38F.

Powers and duties of the General Manager.

(1)

Subject to the general superintendence and control of the Board and the Chairman of the Board, the General Manager shall be the Chief Executive Authority of the Board.

(2)

The General Manager shall exercise and discharge such of the powers and duties of the Chairman as may be delegated to him by the Chairman and such other powers and duties as may be prescribed.

38G.

Meeting of the Board.

- The Board shall meet at such interval and transact business in such manner as may be prescribed.

38H.

Acts not to be invalid due to vacancy or defect.

- No act or proceeding of the Board shall be invalid merely by reason of-

(a)

any vacancy in, or any defect in the constitution of, the Board; or

(b)

any defect in the appointment of a person acting as a member of the Board; or

(c)

any irregularity in the procedure of the Board not affecting the merits of the case.

38I.

Removal etc. of members.

(1)

The State Government may remove from the Board any member who, in its opinion-

(a)

refuses to act,

(b)

has become incapable to act,

(c)

has so abused his office as a member so as to render his continuance on the Board detrimental to the interest of the public, or

(d)

is otherwise unsuitable to continue as a member.

(2)

The State Government may suspend any member pending an inquiry against him.

(3)

No order of removal shall be made unless the member concerned has been given an opportunity of being heard and when such order is passed, the seat of the member removed shall be declared vacant.

(4)

A member who has been removed shall not be eligible for reappointment as a member or in any other capacity under the Board.

38J.

Reconstitution of the Board.

- If the Board fails to carry out its functions or directions issued by the State Government under this Act, the State

Government shall have power to reconstitute the Board.

38K.

Duties of the Board.

- It shall be the duties of the Board-

(a)

to supervise, control and co-ordinate the activities of the market committees;

(b)

to provide expert technical assistance or guidance to the market committees, arrange for the training of officers and employees of the Board and the committees;

(c)

to educate the people about the advantages of the markets;

(d)

to collect and disseminate such statistics and marketing informations in relation to or in connection with the markets or market committees as may be considered necessary by the Board for the benefit of general public; and

(e)

to perform such other duties as may be prescribed.

38L.

Delegation of powers and duties of the Board.

- The Board may, from time to time, by order, delegate, under such restriction, if any, as it may think fit to impose, any of its powers and duties, conferred by or under this Act, to the Chairman or the General Manager of the Board.

38M.

Officers and employees of the Board.

- The Board may, with the approval of the State Government, appoint such other officers and employees as it may consider necessary for the efficient discharge of its functions.

38N.

Finance, Accounts and Audit.

(1)

The State Government may advance money or grant loan to the Board on such terms and conditions as may be determined by the State Government.

(2)

The Board may, with the previous approval of the State Government raise loan from the open market or any financial institution.

38O.

Board Fund.

(1)

There shall be constituted a fund to be called the Tripura Agricultural Produce Marketing Board Fund and there shall be credited thereto the sums paid to the Board by the Central Government or the State Government and all other sums raised or received by the Board.

(2)

The fund shall be applied-

(a)

for meeting the salary, allowances and other remuneration of the members, officers and other employees of the Board and other administrative expenses of the Board;

(b)

for advancing money or granting loan to the market committees on such terms and conditions as the Board may determine;

(c)

for meeting other expenses of the Board in the discharge of its functions under this Act or the rules made thereunder; and

(d)

for repayment of loans raised or received by the Board or interest thereon.

38P.

Budget of the Board.

- The Board shall prepare, in such form and at such time each year as may be prescribed, its budget for the next financial year, showing the estimated expenditure and forward the same to the State Government for sanction.

38Q.

Annual report of the Board.

- The Board shall prepare in such form and at such time each year as may be prescribed, its annual report giving full accounts of its activities during the previous year and forward copies thereof to the State Government.

38R.

Accounts and audit.

- The Accounts of the Board shall be maintained and audited in such manner as may, be prescribed].

Chapter VII

Control by the State Government

39.

[Control by the State Government over the Board.

[Section 39 and 39-A, have been inserted vide Tripura Act No. 3 of 1984, published in the Tripura Gazette, Extraordinary, Part III, No. 166, dated 30-8-1984.]

- The State Government may, from time to time issue to the Board such directions and instructions as it may deem necessary for the efficient administration of the Act and the Board shall carry out such directions and instructions].

39A.

[Control by the State Government and the Board over the market committee.

[Section 39A has been inserted vide Tripura Act No. 3 of 1984.]

- Subject to the control of the State Government, the Board or any officer, authorised by it by general or special order in this behalf, may-

(a)

inspect or cause to be inspected the accounts and offices of any market committee;

(b)

institute inquiry into the affairs of any market committee;

(c)

call for any return, statement, accounts or report which it or he may consider necessary for the committee to furnish;

(d)

issue to the market committees such orders, directions or instructions or do such other acts as it may deem necessary for the efficient administration of this Act.]

40.

Duty of officers, servant and members of market committee to furnish information to the Director, authorised officers and State Government.

(1)

When the accounts and offices of market committee are inspected, or the affairs of such committee are inquired into under Section 39, or the proceedings of such committee are examined under Section 42, all officers, servants, and members of such committee shall furnish such information in their possession in regard to the accounts and offices or affairs or proceedings of such committee as the Director, or the officers authorised by the Director, as the case may be, may require.

(2)

The [Board]

[The word 'Board' has been substituted for the word 'Director', vide Tripura Act No. 3 of 1984.]

or any officer inspecting the accounts and offices or inquiring into the affairs of market committee under Section 39, or the State Government examining the proceedings of such committee under Section 42, shall, for the purposes of such inspection, inquiry or examination, have the same powers as are vested in a civil court under the Code of Civil Procedure, 1908, while trying a suit, in respect of the following matters, namely:

(a)

the summoning and enforcing the attendance of any officer, servant or member of the market committee and examining

him on oath;

(b)

the discovery and production by any officer, servant or member of the market committee of any document or other material subject producible as evidence; and

(c)

the reception of evidence on affidavits.

(3)

Any officer exercising the powers conferred by sub-section (2) shall be deemed to be a Civil Court for the purposes of Section 195 and Chapter XXVI of the Code of Criminal Procedure, 1973.

41.

Powers of the Director to seize books and records, funds and properties of market committees.

- Where the Director has reason to believe that the books and records of a market committee are likely to be tampered with or destroyed or the funds or property of a market committee are likely to be misappropriated or misapplied, the Director may, with the approval of the State Government, issue an order directing a person duly authorised by him in writing to seize and take possession of such books and records, funds and property of a market committee and the officer or officers of the market committee responsible for the custody of such books, records, funds and property shall give delivery thereof to the person so authorised.

42.

Power of the State Government to call for records of any proceeding of a market committee.

- The State Government may, at any time, call for and examine the records of any proceedings of a market committee for the purposes of satisfying itself as to the legality or propriety of any decision or order passed by the market committee under this Act, and if, in any case, it appears to the State Government that any decision or order or proceedings so called for should be modified, annulled or reversed, the State Government may pass such order thereon as it think fit.

43.

Supersession of market committee.

(1)

If, in the opinion of the State Government, a market committee, or any member thereof, is not competent to perform or persistently makes default in performing the duties imposed on it or him by or under this Act, or abuses its or his power or wilfully disregards any instructions issued by the State Government or any officer duly authorised by it in this behalf and arising out of audit of account of the market committee or inspection of the office and works thereof thereby frustrating the purposes of this Act, the State Government may, for reasons to be recorded by it in writing and after giving the committee or member, as the case may be, an opportunity of tendering an explanation, by notification, supersede such market committee, or remove such member, as the case may be; and, where a member is removed the vacancy so caused shall be filled in the same manner and subject to the same conditions in regard to term of office, as provided in Section 14.

(2)

Upon the publication of a notification under sub-section (1) superseding a market committee the following consequences shall ensue, that is to say-

(a)

all members of the market committee shall, from the date of such publication, be deemed to have vacated their office.

(b)

all the assets of the committee shall vest in the State Government;

(c)

the State Government may, by order, either constitute a new market committee in accordance with the provisions contained in Chapter II or make such other arrangement for carrying out the functions of the market committee as it thinks fit.

Chapter IX

Penalties

44.

Penalty for not complying with directions.

- If the president to whom a direction has been issued under sub-section (2) of Section 20, does not, except for reasons

beyond his control, comply with such direction, he shall be punished with fine which may extend to five hundred rupees.
45.

Penalty for contravention of Section 33.

- Whoever in contravention of the provision of sub-section (1) of Section 30, uses any place in the market area for the marketing of the agricultural produce specified in the declaration made under sub-section (1) of Section 4, or operates in the market area or in any market therein as a trader, commission agent, processor, weighman, measurer, surveyor, warehouseman, or in any other capacity in relation to the marketing of agricultural produce specified in such declaration, shall be punished with imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both; and in the case of continuing contravention with further fine which may extend to fifty rupees for every day, after first during which the contravention continues.

46.

Penalty for making or recovering trade allowances.

- Whoever, in contravention of the provision of Section 38, makes or causes to be made or recovers or causes to be recovered any trade allowances, shall be punished with imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both.

47.

Penalty for obstructing officer and failure to obey order under Section 39.

- Whoever, obstructs any officer in carrying out the inspection of accounts, or in holding the inquiry into the affairs of a market committee or fails to obey any order with reference to any matter specified in [Clause (a) or Clause (c) of Section 39-A]

[The words 'Clause (a) or Clause (c) of Section 39-A' have been substituted for the words, letters and figures 'Clause (d) or Clause (c) of Section 39' vide Tripura Act No. 3 of 1984, published in the Tripura Gazette, Extraordinary, Part III, No. 166 dated 30-8-1984.]

shall be punished with fine which may extend to two hundred rupees for every day during which the offence continues.

48.

Contravention of provisions of the Act, rules or bye-laws.

- Whoever contravenes any provisions of this Act or of any rules or bye-laws made thereunder shall, if no other penalty is provided for such contravention elsewhere in this Act or in the rules or bye-laws, be punished with fine which may extend to two hundred rupees.

48A.

[Compounding of offences.

[Section 48A has been inserted vide Tripura Act No. 3 of 1984.]

- The offences punishable under Section 44 may be compounded by the Director; those punishable under Sections 45 and 46 may be compounded by the market committee concerned and the offences punishable under Section 47 and 48 may be compounded by the Board].

Chapter X

Miscellaneous

49.

[Members, officers and employees of the Board and market committees to be public servants.

[Section 49 has been substituted vide Tripura Act No. 3 of 1984.]

- All members, officers and employees of the Board or the market committees shall be deemed, when acting or purporting to act in pursuance of any of the provisions of this Act, to be the public servants within the meaning of Section 21 of the Indian Penal Code.]

50.

Bar of jurisdiction.

- No order passed or decision made under this Act shall be appealable except as provided therein and no civil court shall have jurisdiction in respect any matter which any competent authority is empowered by or under this Act to determine, and no injunction shall be granted by any court or other authority in respect of any action taken or to be taken in pursuance of any power conferred by or under this Act.

51.

Trial of offences.

(1)

No offence under this Act, or any rule or bye-law made thereunder, shall be tried by a court inferior to the court of a Judicial Magistrate of the first class.

(2)

No prosecution under this Act shall be instituted except by the Director or any officer authorised by him in that behalf or by the Secretary or by any other person duly authorised by the market committee in that behalf.

(3)

No court shall take cognizance of any offence under this Act or any rule, order or bye-law made thereunder, unless complaint thereof is made within six months from the date on which the alleged commission of the offence came to the knowledge of the Director, officer, Secretary or person referred to in sub-section (2).

(4)

All fines received by a court from an offender shall be credited to the Government revenues and an amount equal to such fine shall be paid by the Government to the market committee.

52.

Recovery of sums due to Government market committee and others.

(1)

Every sum due from a market committee to the Government shall be recoverable as an arrear of land revenue.

(2)

Subject to the provisions of sub-section (3) of Section 55, any sum due to a market committee on account of any charge, costs, expenses, fees, rent or on any other account under the provisions of this Act or any rule or bye-law made thereunder or any sum due to an agriculturist for any agricultural produce specified under sub-section (1) of Section 25, sold by him in the market area and which is not paid to him as provided by or under this Act, shall be recoverable from the person from whom such sum is due in the same manner as if it were an arrear of land revenue.

(3)

If any question arises whether a sum is due to a market committee or any agriculturist within the meaning of sub-2.(2) it shall be referred to a Tribunal constituted for the purposes which shall, after making such inquiry as it may deem fit, and after giving to the person from whom it is alleged to be due, an opportunity of being heard, decide the question and the decision of the Tribunal shall be final.

(4)

The State Government may constitute one or more Tribunals consisting of one person, possessing such qualifications as may be prescribed who is not connected with the market committee or the agriculturist, as the case may be, or with the person from whom the sum is alleged to be due.

53.

Power of State Government to delegate powers.

- The State Government may, by notification, and subject to such conditions, if any as it may think fit to impose, delegate all or any of the powers conferred upon it by or under any of the provisions of this Act to be the [Board]

[The word 'Board' has been substituted for the word 'Director', vide Tripura Act No. 3 of 1984.]

or any other officer or person specified in the notification.

54.

Power to exempt the market committee etc. from provisions of the Act.

- The State Government may, by general or special order, published in the official Gazette, exempt any market committee or any class of persons from any of the provisions of this Act or any rule or bye-law made there under or may direct, in like manner, that the provisions of this Act shall apply to the market committee or any class of persons with such modifications, not affecting the substance thereof, as may be specified in that order.

55.

Power to make rules.

(1)

The State Government may, by notification, make rules for carrying out the provisions of this Act.

(2)

In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely:

- (a)
the manner in which the members of a market committee may be elected, under Section 9 including all matters incidental to such election;
- (b)
term of office and other conditions of service of the President of the market committee under Sections 15 and 18;
- (c)
the duties of market committee under sub-section (2) of Section 23 and the promotion of the grading and standardisation of such agricultural produce as may be specified in the rules, under Clause (i) of that sub-section;
- (d)
the manner of levy and collection of market fees by market committee, under Section 26;
- (e)
the conditions subject to which loans may be obtained or given by a market committee under sub-section (3) of Section 27;
- (f)
the manner in which and the time within which an appeal may be filed under sub-section (2) of Section 59;
- (g)
the form of licence and the terms and conditions subject to which a licence may be granted or renewed; including fees to be paid in respect of such licence, under Section 31;
- (h)
the fees payable in connection with the weighment and delivery of agricultural produce under Section 31;
- (i)
the manner in which an appeal may be filed under sub-section (1) of Section 33;
- (j)
the composition of sub-committees, method of payment of arbitrators and the fees, if any, that may be paid by parties for the settlement of disputes, the procedure to be followed by the sub-committees or arbitrators for the settlement of disputes and the manner in which and the time within which an appeal may be preferred from the decision of the sub-committee or arbitrator under Section 34;
- (k)
the manner in which the amount to the credit of a market fund shall be kept or invested under sub-section (2) of Section 35;
- (l)
travelling and other allowances payable to the members of the market committees;
- (m)
the manner in which payment from the market fund shall be made its account shall be kept or audited or re-audited, budget estimates of income and expenditure shall be made and annual administration report shall be prepared under Section 37;
- (n)
the qualifications of the member of a Tribunal constituted under sub-section (4) of Section 52;
- (o)
any other matter which is required to be, or may be, prescribed.
- (p)
[power and duties of the Chairman under Section 38-E;
[Clauses (p) to (v) in Section 55 have inserted vide Tripura Act Act No. 3 of 1984.]
- (q)
power and duties of the General Manager under sub-section (2) of Section 38-F;
- (r)
manner of transacting business of the Board under Section 38-G;
- (s)
the form and which the time at which the budget and annual report of the Board shall be prepared under Sections 38-P and 38-Q respectively;
- (t)

the manner in which the accounts of the Board shall be maintained and audited, as required under Section 38-R;

(u)

the powers and duties of the President of a market committee under Section 15-A;

(v)

the powers and duties of the Secretary under Section 29-A.]

(3)

Any rule made under this section may provide that if any purchaser fails to make the payment forthwith as required by sub-section (6) of Section 25, he shall be liable to pay interest from the date of sale to the date of payment at such rate as may be provided in such rule and if payment is not made within thirty days from the date on which the agricultural produce is sold, the principal and interest shall be recoverable by the market committee from the purchaser in the manner provided on Section 52.

(4)

Any rule made under the provisions of this Act, may provide that the contravention thereof shall, on conviction, be punished with fine which may extend to five hundred rupees.

(5)

The power to make, rule conferred by this section, shall be subject to the condition of the rules being made after previous publication.

(6)

Every rule made under this Act shall be laid as soon as may be after it is made before the Legislative Assembly of Tripura while it is in session for a total period of fourteen days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session in which it is so laid or the session immediately following, the house agrees in making any modification in the rule or the House agrees that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

56.

Bye-laws.

(1)

Subject to any rules made under this Act, and with the previous sanction of the State Government, a market committee may, in respect of the market area for which it is constituted or any market established therein, make bye-laws for determining the quantity of agricultural produce which may be provided for retail sale, for the regulation of the business (including meeting, quorum and procedure) of the market committee and the conditions of trading in the market area, including the rates and manner of collection or refund of market fees or any other fees levied under this Act.

(2)

Where a market committee fails to make bye-laws under this section within six months from the date on which this Act comes into force or the date of its constitution, whichever is later, the State Government may make such bye-laws as it may think fit and the bye-laws so made shall remain in operation in relation to that market committee.

(3)

Any bye-law made under the provisions of this Act may provide that any contravention thereof shall, on conviction, be punished with fine which may extend to one hundred rupees.

57.

Power of the State Government to amend Schedule.

- State Government may by notification, include in the Schedule any item of agricultural produce or, amend, or exclude, any of the items of agricultural produce specified in the Schedule.

58.

Power to write off irrecoverable fees etc.

- Whenever it is found that any amount due to the State Government or a market committee is irrecoverable or should be remitted, or whenever any loss of the State Government's or a market committee's money or stores or other property occurs through the fraud or negligence of any person or for any other cause and such money or property is found to be irrecoverable, the fact shall be reported to the Director or market committee, as the case may be, and the Director with the approval of State Government and the market committee with the approval of the Director, may order the amount or value of the property to be written off as lost, irrecoverable or remitted, as the case may be:

Provided that the Director shall not accord such approval without obtaining prior consent of the State Government.

59.

Power of the Committee and President to impose penalty.

(1)

A market committee shall have the power by order, to impose the penalties of censure and fine on any market functionary or agriculturist or purchaser for the contravention of any bye-law, after giving the person concerned a reasonable opportunity of being heard;

Provided that the market committee shall not be competent to impose fine exceeding twenty-five rupees.

(2)

An appeal against an order under sub-section (1) shall lie to the Director within such time and in such manner as may be prescribed.

60.

Repeal and savings.

(1)

On the commencement of this Act, the Bombay Agricultural Produce Markets Act, 1939, shall cease to be in force in the State of Tripura:

Provided that such cessation shall not affect the previous operation of the enactment aforesaid and anything done or any action take (including any appointment, delegation or declaration, made, notification, order, rule, direction, or notice issued, bye-law framed, market committee established, licences granted, fees levied and collected, instruments executed, any fund established or constituted) by or under the provisions of any such enactment, shall, in so far as it is not inconsistent with the provisions of this Act, be deemed to have been done or taken under the corresponding provisions of this Act, and shall continue in force unless and until superseded by anything done or any action taken under this Act.

(2)

Any area or place declared to be a market area or any place or market declared to be a market under the enactment so ceasing to be in force shall, on the commencement of this Act, be deemed to be the market area or market declared under this Act; the market committee constituted for the said market area and functioning immediately prior to such commencement shall be deemed, notwithstanding anything contained in this Act, to be the market committee constituted under this Act for such market area, and, where it is so declared or notified, also for the agricultural produce specified in the declaration or notification; and all the members of such market committee shall be deemed to be members nominated by the State Government under sub-section (2) of Section 7.

(3)

Any reference to the enactment ceasing to be in force as aforesaid or to any provisions thereof or to any officer, authority or person entrusted with any functions thereunder, in any law for the time being in force or any instrument or document, shall be construed, where necessary, as a reference to the corresponding provisions of this Act or to the corresponding officer, authority or person functioning under this Act and the corresponding officer, authority or person, as the case may be, shall have and exercise the functions under such law, instrument or document.

61.

Power to remove difficulties.

- If any difficulty arises, in giving effect to the provisions of this Act, the State Government may, as occasion requires, by order not inconsistent with the provisions of this Act, do anything which appears to it be necessary or expedient for the purpose of removing the difficulty.

Provided that no such order shall be made after the expiry of three years for the commencement of this Act.

Schedule

[See Section 2 (1) (a) and Section 57]

I. Fibres:

1. Cotton (ginned and unginned).
2. San Hemp,
3. Jute.
4. Mesta.

II. Cereals

1. Wheat and wheat products.
2. Paddy and its products.

3. Chira.

4. Muri.

5. Khai.

6. Maize.

7. Ragi.

8. Jowar.

III. Pulses :

1. Arhar.

2. Blackgram or Kalai.

3. Mug.

4. Lentil (Musur).

5. Choola.

6. Dry peas.

7. Kulthi.

8. Splits (Dal) of pulses.

9. Khesari.

10. Ghevda.

11. Cow peas (Dry).

12. Assam Vailly.

IV Oil Seeds:

1. Groundnut (shelled and unshelled).

2. Linseeds.

3. Sesamum.

4. Coconut (including green).

5. Cotton seeds.

6. Castor seeds.

7. Mustard and rape.

8. All vegetable oil & oilcakes.

V. Tobacco :

VI. Gur, sugar and sugarcane,

VII. Fruits :

1. Mango.

2. Musambi.

3. Lemon.

4. Banana.

5. Chikko.

6. Melons.

7. Water Melon.

8. Papaya.

9. Guava.

10. Custard Apple.

11. Pineapple.

12. Naspatti.

13. Jackfruit.

14. Litchi.

15. Orange.

16. Black Berry.

VIII. Vegetable :

1. Potato.

2. Onion.
3. Palwal.
4. Brinjals.
5. Gourds (Law, Chalkumar & Mistt Kumar).
6. Bhindi.
7. Pumpkin.
8. Tomato.
9. Cauliflower.
10. Cabbage.
11. Peas.
12. Beans.
13. Shag (All leafy vegetable).
14. Carrot.
15. Raddish.
16. Sweet Potato.
17. Karela.
18. Patal.
19. Mukhi (Chara).
20. Kachu.
21. Green Chilly.
22. Tapioca.
23. Papaya (Green).

IX. Animal Husbandry Products :

1. Eggs.
2. Poultry.
3. Cattle.
4. Sheep.
5. Goat.
6. Wool.
7. Butter.
8. Ghee.
9. Milk.
10. Pork.
11. Bones.
12. All kinds of meat.
13. Hides and skins.

X. Condiments, spices & others :

1. Turmeric.
2. Ginger.
3. Coriander.
4. Cardamom including black pepper.
5. Garlic.
6. Chillies.
7. Betelnuts.
8. Betel leaves.
9. Cashewnut.
10. Rai mustard.
11. Methi.
12. Tamarine.

XI. Grass & Fodder.

XII. Cattle Feeds :

(All kinds of cattle feeds)

XIII. Apiculture :

1. Honey.

XIV. Pisciculture :

1. Fish including fish seed.

2. Fish including dry fish.

XV. Forest produce :

1. Hilda.

2. Gum.

3. Bidi leaves.

4. Lac.

5. Chhan.

6. Citronala and its oils.

7. Bel.

8. Kul.

9. Bamboo including Dhari, Tukri, Laddor, Chatai & Wooden portion of the plough.

Related AI tags, queries and research notes

Translation